

ENTITLED: “AN ORDINANCE AMENDING ORDINANCE NO. 4065, ANNEXING TO THE CITY OF CHEYENNE, WYOMING, LAND SITUATED IN THE NORTH 286.5 FEET OF TRACT 36, CHEYENNE IRRIGATED GARDENS, 2ND FILING; NW¼SE¼SW¼ OF SECTION 4; AND A PORTION OF SECTIONS 4 AND 5, T.13N., R.66W., 6TH P.M., LARAMIE COUNTY, WYOMING (LOCATED NORTH OF E. FOX FARM ROAD, BETWEEN MORRIE AVENUE AND AVENUE C-4).”

BE IT ORDAINED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE, WYOMING:

Section 1. That the City of Cheyenne hereby finds as follows:

- (a) That James O. Woods III, owner of parcels of land being situated in the North 286.5 feet of Tract 36, as shown as a plat entitled “Cheyenne Irrigated Gardens, 2nd Filing,” recorded May 7, 1926 in Plat Cabinet 1, Slot 77, Records of Laramie County, Wyoming; NW¼SE¼SW¼ of Section 4; and a portion of Sections 4 and 5, T.13N., R.66W., 6th P.M., Laramie County, Wyoming, has petitioned the governing body of the City of Cheyenne to annex the real property described herein and to make it a part thereof; and
- (b) That an accurate annexation map of said land is attached to this ordinance as Exhibit A, said map prepared by Gary N. Grigsby, a Professional Land Surveyor, registered in the State of Wyoming, PLS Number 9283; and
- (c) That the annexation of said area is for the protection of health, safety, and welfare of the persons residing in the area and the City of Cheyenne; and
- (d) That the urban development of the area sought to be annexed will constitute a natural, geographical, economical and social part of the City of Cheyenne; and
- (e) That the area is a logical and feasible addition to the City and that the extension of basic services such as water and sewer systems, police and fire protection and other services customarily available in the City of Cheyenne can, within reason, be furnished; and
- (f) That the area is adjacent to the City of Cheyenne and is currently zoned LI Light Industrial – by the Laramie County Commissioners; and
- (g) That the City of Cheyenne does not own or operate its own electrical utility, and its governing body is prepared to designate a utility to serve the annexed area pursuant to W.S. 15-1-410, and to authorize the designated utility to serve the entire annexed area.

Section 2. That all of the real property described in Exhibit A is hereby annexed to the City of Cheyenne, Wyoming, and shall become a part thereof.

Section 3. That the City Clerk is directed to file an executed copy of this annexation ordinance and map (Exhibit A) with the County Clerk and Ex-Officio Register of Deeds for Laramie County, Wyoming, and shall also notify the City Engineer's Office to add said area to the official City Map of the City of Cheyenne, Wyoming.

Section 4. Sections, paragraphs, sentences, clauses and phrases of this ordinance are severable. If any phrase, clause, sentence, paragraph or section of this ordinance is declared illegal or unconstitutional, such illegality or unconstitutionality shall not affect any of the remaining phrases, clauses, sentences, paragraphs and sections.

Section 5. That this ordinance shall be in full force and effect upon its publication.

FIRST READING:_____

SECOND READING:_____

THIRD AND FINAL READING:_____

RICHARD L. KAYSEN, MAYOR

(SEAL)

CAROL INTLEKOFER, CITY CLERK

published:_____



DEVELOPMENT OFFICE

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A COMMUNITY OF CHOICE

MEMORANDUM

TO: City Council Members and Mayor Kaysen

FROM: Josh Tetzlaff, Planner

SUBJECT: Amendment by substitution of an ordinance for **Waterford Square** Annexation (UDC-15-00051)

DATE: May 6, 2015

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The attached ordinance amends an ordinance approving the Waterford Square annexation that was approved by the Governing Body on April 13, 2015. After the Waterford Square annexation ordinance was approved, the City attempted to record the annexation ordinance and the attached annexation map in the offices of the Laramie County Clerk. The City is required to record annexation ordinances and maps pursuant to W.S. 15-1-406(a).

The Laramie County Clerk refused to record the annexation ordinance and map because the words "Cheyenne Irrigated Gardens, 2nd Filing" did not follow the reference to Tract 35 that appears in the entitlement to the ordinance. This reason for the refusal to record the annexation ordinance and map may be somewhat overly technical since the annexation map attached to the original ordinance makes it clear that Tract 35 is part of "Cheyenne Irrigated Gardens, 2nd Filing."

This amendment to the original annexation ordinance satisfies the concerns of the Laramie County Clerk because the words "Cheyenne Irrigated Gardens, 2nd Filing" will be inserted into the entitlement and into Section 1.a of the original ordinance.

Thank you.

Encl: Amended Ordinance

Cc: File
Owner/Agent
City Attorney
City Clerk